

Minos¹

MINΩΣ

Plato

translated by David Horan

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313a

S: What, for us, is law?

ΣΩ. ὁ νόμος ἡμῖν τί ἐστίν; ΕΤ. ὁποῖον καὶ ἐρωτᾷς τῶν νόμων; ΣΩ. τί δ'; ἔστιν ὅτι διαφέρει νόμος νόμου κατ' αὐτὸ τοῦτο, κατὰ τὸ νόμος εἶναι; σκόπει γὰρ δὴ ὃ τυγχάνω ἐρωτῶν σε. ἐρωτῶ γάρ, ὥσπερ εἰ ἀνηρόμην τί ἐστίν χρυσός, εἴ με ὡσαύτως ἀνήρου ὁποῖον καὶ λέγω χρυσόν, οἷομαί σε οὐκ ἂν ὀρθῶς ἐρέσθαι. οὐδὲν γάρ που διαφέρει οὔτε χρυσὸς

Co: What kind of laws are you asking about?

S: What's this? Does law differ from law on the particular basis of being law? Consider what I'm actually asking you. It's as if I had asked you what gold is, and you, as you have just done, were to ask me what kind of gold I meant. I believe you would not be questioning me in the correct manner. For gold, presumably, does not differ at all from gold, nor does stone from stone, on the basis of stone being stone or on the basis of gold being gold. And so, neither does law, I presume, differ at all from law. They are, rather, all the same thing, for each of them is a law, none is more so and none is less so. So this is my specific question: what, in general, is law? If you have a ready answer, let's hear it.

313b

Co: What else could law be, Socrates, except whatever is conventional?

χρυσοῦ οὔτε λίθος λίθου κατὰ γε τὸ λίθος εἶναι καὶ κατὰ τὸ χρυσός· οὕτω δὲ οὐδὲ νόμος που νόμου οὐδὲν διαφέρει, ἀλλὰ πάντες εἰσὶν ταυτόν. νόμος γὰρ ἕκαστος αὐτῶν ἐστίν ὁμοίως, οὐχ ὁ μὲν μᾶλλον, ὁ δ' ἥττον· τοῦτο δὴ αὐτὸ ἐρωτῶ, τὸ πᾶν τί ἐστίν νόμος. εἰ οὖν σοι πρόχειρον, εἰπέ. ΕΤ. τί οὖν ἄλλο νόμος εἴη ἢ ὃ Σώκρατες, ἀλλ' ἢ τὰ νομιζόμενα; ΣΩ. ἦ καὶ λόγος σοι δοκεῖ εἶναι τὰ λεγόμενα, ἢ ὅψις τὰ ὀρώμενα, ἢ ἀκοή τὰ ἀκούόμενα; ἢ ἄλλο μὲν λόγος, ἄλλο

313c

S: And do you think that speech is whatever is spoken, or sight is whatever is seen, or that hearing is whatever is heard? Or is speech other than what is spoken, sight other than what is seen, and is

hearing one thing while whatever is heard is something else? And is law, in that case, one thing, while whatever is conventional is something else? Is this so, or how does it seem to you?

δὲ τὰ λεγόμενα· καὶ ἄλλο μὲν ὄψις, ἄλλο δὲ τὰ ὀρώμενα· καὶ ἄλλο μὲν ἀκοή, ἄλλο δὲ τὰ ἀκουόμενα, καὶ ἄλλο δὴ νόμος, ἄλλο δὲ τὰ νομιζόμενα; οὕτως ἢ πῶς σοι δοκεῖ; ET. ἄλλο μοι νῦν ἐφάνη. ΣΩ. οὐκ ἄρα νόμος ἐστὶν τὰ νομιζόμενα. ET. οὐ μοι δοκεῖ. ΣΩ. τί δῆτ' ἂν εἴη νόμος; ἐπισκεψώμεθ' αὐτὸ ὧδε. εἴ τις ἡμᾶς τὰ νυνδὴ λεγόμενα ἀνῆρετο, ἐπειδὴ ὄψει φατὲ τὰ ὀρώμενα ὀρᾶσθαι, τίνι ὄντι τῇ ὄψει ὀρᾶται; ἀπεκρινάμεθ' ἂν αὐτῷ ὅτι αἰσθήσει ταύτη τῇ διὰ τῶν ὀφθαλμῶν δηλούσῃ τὰ πράγματα· εἰ δ' αὖ ἤρετο ἡμᾶς, τί δέ; ἐπειδὴ ἀκοῇ τὰ ἀκουόμενα ἀκούεται, τίνι ὄντι τῇ ἀκοῇ; ἀπεκρινάμεθ' ἂν αὐτῷ ὅτι αἰσθήσει ταύτη τῇ διὰ τῶν ὠτῶν δηλούσῃ ἡμῖν τὰς φωνάς. οὕτω τοίνυν καὶ εἰ ἀνέροιτο ἡμᾶς, ἐπειδὴ νόμῳ τὰ νομιζόμενα νομίζεται, τίνι ὄντι τῷ νόμῳ νομίζεται; πότερον αἰσθήσει τινὶ ἢ δηλώσει, ὥσπερ τὰ μανθανόμενα μανθάνεται δηλούσῃ τῇ ἐπιστήμῃ, ἢ εὕρεσει τινί, ὥσπερ τὰ εὕρισκόμενα εὕρίσκεται, οἷον τὰ μὲν ὑγιεινὰ καὶ νοσῶδη ἱατρικῇ, ἃ δὲ οἱ θεοὶ διανοοῦνται, ὥς φασιν οἱ μάντις, μαντικῇ; ἢ γὰρ που τέχνη ἡμῖν εὕρεσις ἐστὶν τῶν πραγμάτων· ἢ γάρ; ET. πάνυ γε. ΣΩ. τί οὖν ἂν τούτων ὑπολάβοιμεν μάλιστα τὸν νόμον εἶναι; ET. τὰ δόγματα ταῦτα καὶ ψηφίσματα, ἔμοιγε δοκεῖ. τί γὰρ ἂν ἄλλο τις φαίη νόμον εἶναι; ὥστε κινδυνεύει, ὃ

Co: To me, at the moment, they seem different.

S: So law, then, is not whatever is conventional.

Co: I don't think so.

313d

S: What, then, would law be? Let's investigate this as follows. If someone asked us about what has been said just now, "Since you say that whatever is seen is seen by sight, what is this sight by which they are seen?", we would reply that it is the sense perception that reveals things through the eyes. Suppose he were to go on and ask us, "Well then, since whatever is heard is heard by hearing, what is this

hearing?”, we would reply that it is the sense perception by which sounds are revealed to us through the ears. Well, what if he were also to question us in this way, “Since it is by law that whatever is conventional is conventional, what is this law by which they are conventional? Is it some sense perception, or an explanation, just as whatever is learned is learned by being explained by knowledge? Or is it discovery, just as whatever is discovered is discovered in the way that, for instance, what is healthy or unhealthy is discovered by medicine, and the intentions of the gods are, according to the soothsayers, discovered by prophecy, since skill, for us, is presumably the discovery of things? Is this so?”

314c

CO: Entirely so.

σὺ ἐρωτᾷς, τὸ ὅλον τοῦτο, νόμος, δόγμα πόλεως εἶναι. ΣΩ. δόξαν, ὡς ἔοικε, λέγεις πολιτικὴν τὸν νόμον. ΕΤ. ἔγωγε. ΣΩ. καὶ ἴσως καλῶς λέγεις· τάχα δὲ ὧδε ἄμεινον εἰσόμεθα. λέγεις τινὰς σοφούς; ΕΤ. ἔγωγε. ΣΩ. οὐκοῦν οἱ σοφοὶ εἰσιν σοφία σοφοί; ΕΤ. ναί. ΣΩ. τί δέ; οἱ δίκαιοι δικαιοσύνη δίκαιοι; ΕΤ. πάνυ γε. ΣΩ. οὐκοῦν καὶ οἱ νόμιμοι νόμῳ νόμιμοι; ΕΤ. ναί. ΣΩ. οἱ δὲ

S: So, which of these might we best assume law to be?

CO: The various decisions and decrees, in my opinion at any rate. What else could anyone declare law to be? So it is most likely, to respond to your question, that law in general is a decision of a city.

S: You seem to be saying that law is political opinion.

CO: I am.

314d

S: And you may perhaps be right, but we may know better, as follows. Do you say that some people are wise?

ἄνομοι ἀνομία ἄνομοι; ΕΤ. ναί. ΣΩ. οἱ δὲ νόμιμοι δίκαιοι; ΕΤ. ναί. ΣΩ. οἱ δὲ ἄνομοι ἄδικοι; ΕΤ. ἄδικοι. ΣΩ. οὐκοῦν κάλλιστον ἢ δικαιοσύνη τε καὶ ὁ νόμος; ΕΤ. οὕτως. ΣΩ. αἴσχιστον δὲ ἢ ἀδικία τε καὶ ἡ ἀνομία; ΕΤ. ναί.

ΣΩ. καὶ τὸ μὲν σφάζει τὰς πόλεις καὶ τᾶλλα πάντα, τὸ δὲ ἀπόλλυσι καὶ ἀνατρέπει; ΕΤ. ναί. ΣΩ. ὥς περὶ καλοῦ ἄρα τινὸς ὄντος δεῖ τοῦ νόμου διανοεῖσθαι, καὶ ὥς ἀγαθὸν αὐτὸ ζητεῖν. ΕΤ. πῶς δ' οὔ; ΣΩ. οὐκοῦν δόγμα ἔφαμεν εἶναι πόλεως τὸν νόμον;

CO: I do.

S: Aren't the wise people wise by wisdom?

CO: Yes.

S: And what about the just people? Aren't they just by justice?

CO: Certainly.

S: Are not the lawful people lawful by law?

CO: Yes.

S: Are the lawless people lawless by lawlessness?

CO: Yes.

S: Are the lawful people just?

CO: Yes.

S: Are the lawless people unjust?

CO: Unjust.

S: Are not justice and law most noble?

CO: Quite so.

S: And injustice and lawlessness are most base?

CO: Yes.

314e

S: And one preserves the city and everything else, while the other destroys and overturns them?

ΕΤ. ἔφαμεν γάρ. ΣΩ. τί οὔν; οὐκ ἔστιν τὰ μὲν χρηστὰ δόγματα, τὰ δὲ πονηρά; ΕΤ. ἔστιν μὲν οὔν. ΣΩ. καὶ μὴν νόμος γε οὐκ ἦν πονηρός. ΕΤ. οὐ

γάρ. ΣΩ. οὐκ ἄρα ὀρθῶς ἔχει ἀποκρίνεσθαι οὕτως ἀπλῶς ὅτι νόμος ἐστὶ δόγμα πόλεως. ΕΤ. οὐκ ἔμοιγε δοκεῖ. ΣΩ. οὐκ ἄρα ἀρμόττοι ἂν τὸ πονηρὸν δόγμα νόμος εἶναι. ΕΤ. οὐ δῆτα. ΣΩ. ἀλλὰ μὴν δόξα γέ τις καὶ αὐτῷ μοι καταφαίνεται ὁ νόμος εἶναι· ἐπειδὴ δὲ οὐχ ἡ πονηρὰ δόξα, ἄρα οὐκ ἤδη τοῦτο κατάδηλον, ὥς ἡ χρηστή, εἴπερ δόξα νόμος ἐστί; ΕΤ. ναί. ΣΩ. δόξα δὲ χρηστή τίς ἐστίν; οὐχ ἡ ἀληθής;

Co: Yes.

S: So, we should regard law as something noble and seek it as something good.

Co: Of course.

S: Didn't we say that law is a decision of a city?

Co: We said so, indeed.

S: Well then, are some decisions good while others are evil?

Co: Indeed so.

S: And yet, law was not evil.

Co: Indeed not.

S: In that case, it is not correct to reply so simply that law is a decision of a city.

Co: No, I don't think so.

S: So it would not be appropriate for an evil decision to be law.

Co: No, indeed.

315a

S: And yet it is quite apparent to me, for my part, that law is an opinion. But since it is not evil opinion, it is obvious by now, is it not, that it is good opinion, if law is indeed opinion?

ΕΤ. ναί. ΣΩ. οὐκοῦν ἡ ἀληθὴς δόξα τοῦ ὄντος ἐστὶν ἐξεύρεσις; ΕΤ. ἔστιν γάρ. ΣΩ. ὁ νόμος ἄρα βούλεται τοῦ ὄντος εἶναι ἐξεύρεσις. ΕΤ. πῶς οὔν, ὦ Σώκρατες, εἰ ὁ νόμος ἐστὶν τοῦ ὄντος ἐξεύρεσις, οὐκ αἰὲ τοῖς αὐτοῖς

νόμοις χρώμεθα περὶ τῶν αὐτῶν, εἰ τὰ ὄντα γε ἡμῖν ἐξηύρηται; ΣΩ.
βούλεται μὲν οὐδὲν ἥττον ὁ νόμος εἶναι τοῦ ὄντος ἐξεύρεσις· οἱ δ' ἄρα
μὴ τοῖς αὐτοῖς ἀεὶ νόμοις χρώμενοι

Co: Yes.

S: But what is good opinion? Is it not true opinion?

Co: Yes.

S: And true opinion is discovery of what is?

Co: It is, indeed.

S: So law purports to be discovery of what is?

Co: How then is it, Socrates, if law is discovery of what is, that we do not always have recourse to the same laws in relation to the same issues if things that are have been discovered by us?

315b

S: Law, nonetheless, purports to be the discovery of what is. So those people who apparently do not have recourse to the same laws are not always able to discover what the laws purport to discover, namely, what is. Come on, let's see whether it may become clear to us, from here on, whether we always have recourse to the same laws or use different laws at different times, and also whether we all have recourse to the same laws, or different people use different laws.

ἄνθρωποι, ὡς δοκοῦμεν, οὐκ ἀεὶ δύνανται ἐξευρίσκειν ὃ βούλεται ὁ νόμος, τὸ ὄν. ἐπεὶ φέρε ἴδωμεν ἐὰν ἄρα ἡμῖν ἐνθὲνδε κατάδηλον γένηται εἴτε τοῖς αὐτοῖς ἀεὶ νόμοις χρώμεθα ἢ ἄλλοτε ἄλλοις, καὶ εἰ ἅπαντες τοῖς αὐτοῖς ἢ ἄλλοι ἄλλοις. ΕΤ. ἀλλὰ τοῦτό γε, ὦ Σώκρατες, οὐ χαλεπὸν γινῶναι, ὅτι οὔτε οἱ αὐτοὶ ἀεὶ τοῖς αὐτοῖς νόμοις χρώνται ἄλλοι τε ἄλλοις, ἐπεὶ αὐτίκα ἡμῖν μὲν οὐ νόμος ἐστὶν ἀνθρώπους θύειν ἀλλ' ἀνόσιον, Καρχηδόνιοι δὲ θύουσιν ὡς ὄσιον ὄν

315c

Co: Socrates, it is not difficult to recognise that the same people do not always have recourse to the same laws, and also that different people

use different laws. Since, among ourselves here, at the moment, the law forbids human sacrifice; it is unholy, whereas the Carthaginians perform such sacrifices, as for them these are holy and conventional, and some of them even sacrifice their own sons to Cronus, as you may perhaps have heard. And it is not just non-Greeks who have recourse to different laws from ours, but even the people of Lycia and the descendants of Athamas perform such sacrifices, even though they are Greeks. And you know, I presume, about ourselves too, having heard about the kinds of laws we had recourse to in the past concerning the dead, laws whereby we first slaughtered sacrificial victims before the corpse was carried out, and engaged women to gather the bones into an urn. Then again, still earlier generations than these used to bury their dead in the house, but we do not follow any of these practices. And it would be possible to give lots of similar examples. Indeed, there is much scope for demonstrating that we ourselves do not always legislate on the same basis among ourselves, nor do people in general do so with one another.

καὶ νόμιμον αὐτοῖς, καὶ ταῦτα ἔνιοι αὐτῶν καὶ τοὺς αὐτῶν ὑεῖς τῷ Κρόνῳ, ὡς ἴσως καὶ σὺ ἀκήκοας. καὶ μὴ ὅτι βάρβαροι ἄνθρωποι ἡμῶν ἄλλοις νόμοις χρῶνται, ἀλλὰ καὶ οἱ ἐν τῇ Λυκαίᾳ οὗτοι καὶ οἱ τοῦ Ἀθάμαντος ἔκγονοι οἷας θυσίας θύουσιν Ἑλλήνες ὄντες. ὥσπερ καὶ ἡμᾶς αὐτοὺς οἶσθ' ὅτι καὶ αὐτὸς ἀκούων οἷσι νόμοις ἐχρώμεθα πρὸ τοῦ περὶ τοὺς ἀποθανόντας, ἱερεῖά τε προσφάττοντες πρὸ τῆς ἐκφορᾶς τοῦ νεκροῦ καὶ ἐγχυτιστρίας μεταπεμπόμενοι οἱ

315d

S: I would not be at all surprised, best of men, if you were right in what you are saying and this is something I had overlooked. But as long as you state your opinions in your own way in a lengthy speech, and I do likewise, I don't think we will come to any conclusions. But if the enquiry were common to us both, we might perhaps come to agreement. So, engage with me in a common enquiry by putting questions to me if you wish, or by answering my questions if you prefer.

δ' αὖ ἐκείνων ἔτι πρότεροι αὐτοῦ καὶ ἔθαπτον ἐν τῇ οἰκίᾳ τοὺς ἀποθανόντας· ἡμεῖς δὲ τούτων οὐδὲν ποιοῦμεν. μυρία δ' ἂν τις ἔχοι τοιαῦτα εἰπεῖν· πολλή γὰρ εὐρυχωρία τῆς ἀποδείξεως ὥς οὔτε ἡμεῖς ἡμῖν αὐτοῖς ἀεὶ κατὰ ταῦτα νομίζομεν οὔτε ἀλλήλοις οἱ ἄνθρωποι. ΣΩ. οὐδὲν τοι θαυμαστόν ἐστιν, ὦ βέλτιστε, εἰ σὺ μὲν ὀρθῶς λέγεις, ἐμὲ δὲ τοῦτο λέληθεν. ἀλλ' ἔως ἂν σύ τε κατὰ σαυτὸν λέγῃς ἃ σοι δοκεῖ μακρῶ λόγῳ καὶ πάλιν ἐγώ,

315e

Co: I am willing, Socrates, to answer any questions you like.

οὐδὲν μὴ ποτε συμβῶμεν, ὥς ἐγὼ οἶμαι· ἐὰν δὲ κοινὸν τεθῇ τὸ σκέμμα, τάχ' ἂν ὁμολογήσαιμεν. εἰ μὲν οὖν βούλει, πυνθανόμενός τι παρ' ἐμοῦ κοινῇ μετ' ἐμοῦ σκόπει· εἰ δ' αὖ βούλει, ἀποκρινόμενος. ΕΤ. ἀλλ' ἐθέλω, ὦ Σώκρατες, ἀποκρίνεσθαι ὅτι ἂν βούλῃ. ΣΩ. φέρε δὴ σύ, πότερα νομίζεις τὰ δίκαια ἄδικα εἶναι καὶ τὰ ἄδικα δίκαια, ἢ τὰ μὲν δίκαια δίκαια, τὰ δὲ ἄδικα ἄδικα; ΕΤ. ἐγὼ μὲν τὰ τε δίκαια δίκαια καὶ τὰ ἄδικα

S: Come on then, are you accustomed to thinking that whatever is just is unjust, and whatever is unjust is just, or alternatively that whatever is just is just, while whatever is unjust is unjust.

Co: I am accustomed to thinking that whatever is just is just, and whatever is unjust is unjust.

316a

S: And aren't they conventionally thought of in this way by everyone, in the same way as they are thought of here?

ἄδικα. ΣΩ. οὐκοῦν καὶ παρὰ πᾶσιν οὕτως ὥς ἐνθάδε νομίζεται; ΕΤ. ναί. ΣΩ. οὐκοῦν καὶ ἐν Πέρσαις; ΕΤ. καὶ ἐν Πέρσαις. ΣΩ. ἀλλὰ ἀεὶ δήπου; ΕΤ. αἰί. ΣΩ. πότερον δὲ τὰ πλεῖον ἔλκοντα βαρύτερα νομίζεται ἐνθάδε, τὰ δὲ ἔλαττον κουφότερα, ἢ τοῦναντίον; ΕΤ. οὐκ, ἀλλὰ τὰ πλεῖον ἔλκοντα βαρύτερα, τὰ δὲ ἔλαττον κουφότερα. ΣΩ. οὐκοῦν καὶ ἐν Καρχηδόνι καὶ ἐν Λυκαίᾳ; ΕΤ. ναί. ΣΩ. τὰ μὲν καλά, ὥς ἔοικε, πανταχοῦ νομίζεται

Co: Yes.

S: Among the Persians too?

Co: Even among the Persians.

S: Always, I presume?

Co: Always.

S: Are things that offer more resistance conventionally regarded as heavier here, and those that offer less resistance as lighter, or is it the other way around?

Co: No, whatever offers more resistance is heavier, whatever offers less is lighter.

S: Is this also the case in Carthage and Lycia?

Co: Yes.

316b

S: And people everywhere conventionally think of whatever is good as good and whatever is base as base, and not that what's base is good and what's good is base.

καλὰ καὶ τὰ αἰσχροῦ αἰσχροῦ, ἀλλ' οὐ τὰ αἰσχροῦ καλὰ οὐδὲ τὰ καλὰ αἰσχροῦ. ET. οὕτως. ΣΩ. οὐκοῦν, ὥς κατὰ πάντων εἰπεῖν, τὰ ὄντα νομίζεται εἶναι, οὐ τὰ μὴ ὄντα, καὶ παρ' ἡμῖν καὶ παρὰ τοῖς ἄλλοις ἅπασιν. ET. ἔμοιγε δοκεῖ. ΣΩ. ὅς ἂν ἄρα τοῦ ὄντος ἀμαρτάνῃ, τοῦ νομίμου ἀμαρτάνει. ET. οὕτω μὲν, ὃ Σώκρατες, ὥς σὺ λέγεις, καὶ φαίνεται ταῦτα νόμιμα καὶ ἡμῖν ἀεὶ καὶ τοῖς ἄλλοις· ἐπειδὴν δ' ἐννοήσω

Co: Quite so.

S: So, is it not the case, generally speaking, that we ourselves, and all other people too, conventionally think that things that are, are what they are, and not what they are not?

Co: I think so.

S: So, whoever is in error about what is, is in error about what is conventional.

316c

CO: Socrates, according to your formulation these all appear conventional, both for ourselves and anyone else. But as long as I bear in mind that we never stop changing our laws this way and that, I cannot be persuaded.

ὅτι οὐδὲν πανόμεθα ἄνω κάτω μετατιθέμενοι τοὺς νόμους, οὐ δύναμαι πεισθῆναι. ΣΩ. ἴσως γὰρ οὐκ ἐννοεῖς ταῦτα μεταπεττευόμενα ὅτι ταῦτά ἐστιν. ἀλλ' ὥδε μετ' ἐμοῦ αὐτὰ ἄθρει. ἤδη ποτὲ ἐνέτυχες συγγράμματι περὶ ὑγιείας τῶν καμνόντων; ΕΤ. ἔγωγε. ΣΩ. οἶσθα οὖν τίνος τέχνης τοῦτ' ἐστὶ τὸ σύγγραμμα; ΕΤ. οἶδα, ὅτι ἰατρικῆς. ΣΩ. οὐκοῦν ἰατροὺς καλεῖς τοὺς ἐπιστήμονας περὶ τούτων; ΕΤ. φημί.

S: Indeed, perhaps you are not bearing in mind that when moving the pieces on a draughts board, the pieces are the same. But look at this closely with me. Have you ever come across writings concerning the health of sick people?

CO: I have.

S: Well, do you know what skill the treatise belongs to?

CO: I do, it belongs to the skill of medicine.

S: Don't you refer to those who are knowledgeable about these matters as physicians?

CO: I agree.

316d

S: Now, do those who are knowledgeable conventionally think the same things about the same matters, or do they differ?

ΣΩ. πότερον οὖν οἱ ἐπιστήμονες ταῦτα περὶ τῶν αὐτῶν νομίζουσιν ἢ ἄλλοι ἄλλα; ΕΤ. ταῦτα ἔμοιγε δοκοῦσι. ΣΩ. πότερον οἱ Ἕλληνες μόνοι τοῖς Ἕλλησιν ἢ καὶ οἱ βάρβαροι αὐτοῖς τε καὶ τοῖς Ἕλλησι, περὶ ὧν ἂν εἰδῶσι, ταῦτα νομίζουσι; ΕΤ. ταῦτα δήπου πολλὴ ἀνάγκη ἐστὶν τοὺς εἰδότας αὐτοὺς αὐτοῖς συννομίζειν καὶ Ἕλληνας καὶ βαρβάρους. ΣΩ. καλῶς γε ἀπεκρίνω. οὐκοῦν καὶ ἀεὶ; ΕΤ. ναί, καὶ ἀεὶ. ΣΩ. οὐκοῦν καὶ οἱ ἱατροὶ συγγράφουσι περὶ ὑγιείας ἅπερ

Co: The same things, in my opinion.

S: Is it only Greeks who conventionally think the same things as their fellow Greeks concerning issues they know about, or does this also apply to non-Greeks, both with themselves and with Greeks?

Co: There is a strong necessity, I presume, that those who know, be they Greeks or non-Greeks, should agree in thinking the same things.

S: A good answer. And isn't this always the case?

Co: Yes, indeed, always.

S: Don't the physicians commit to writing whatever views they conventionally hold in relation to health?

Co: Yes.

316e

S: So, these writings of the physicians are medical writings and are medical laws.

καὶ νομίζουσιν εἶναι; ET. ναί. ΣΩ. ἱατρικὰ ἄρα καὶ ἱατρικοὶ νόμοι ταῦτα τὰ συγγράμματα ἐστὶν τὰ τῶν ἱατρῶν. ET. ἱατρικὰ μέντοι. ΣΩ. ἅρ' οὐν καὶ τὰ γεωργικὰ συγγράμματα γεωργικοὶ νόμοι εἰσὶν; ET. ναί. ΣΩ. τίνων οὐν ἐστὶν τὰ περὶ κήπων ἐργασίας συγγράμματα καὶ νόμιμα; ET. κηπουρῶν. ΣΩ. κηπουρικοὶ ἄρα νόμοι ἡμῖν εἰσιν οὗτοι. ET. ναί. ΣΩ. τῶν ἐπισταμένων κήπων ἄρχειν; ET. πῶς δ' οὐ; ΣΩ. ἐπίστανται δ' οἱ κηπουροί. ET. ναί. ΣΩ. τίνων δὲ τὰ περὶ ὄψου σκευασίας συγγράμματά τε καὶ νόμιμα; ET. μαγεύρων. ΣΩ. μαγευρικοὶ ἄρα οὗτοι νόμοι εἰσὶ; ET. μαγευρικοί. ΣΩ. τῶν ἐπισταμένων, ὥς

Co: Yes, medical.

S: So, the agricultural writings are agricultural laws?

Co: Yes.

S: What about writings and conventions of horticultural work? To whom do these belong?

Co: To the gardeners.

S: So, these are our horticultural laws?

CO: Yes.

S: Belonging to those who know how to take charge of gardens?

CO: Of course.

S: And it is gardeners who know this.

CO: Yes.

S: To whom do the writings and conventions about the preparation of food belong?

CO: To the cooks.

S: So, these are culinary laws?

CO: Culinary.

S: Belonging, it seems, to those who know how to take charge of food preparation?

CO: Yes.

S: And it is cooks, they say, who know this?

317a

CO: Yes, they know.

ἔοικεν, ὅψου σκευασίας ἄρχειν; ET. ναί. ΣΩ. ἐπίστανται δέ, ὡς φασιν, οἱ μάγειροι; ET. ἐπίστανται γάρ. ΣΩ. εἶεν· τίνων δὲ δὴ τὰ περὶ πόλεως διοικήσεως συγγράμματα τε καὶ νόμιμά ἐστιν; ἄρ' οὐ τῶν ἐπισταμένων πόλεων ἄρχειν; ET. ἔμοιγε δοκεῖ. ΣΩ. ἐπίστανται δὲ ἄλλοι τινὲς ἢ οἱ πολιτικοί τε καὶ οἱ βασιλικοί; ET. οὗτοι μὲν οὖν. ΣΩ. πολιτικὰ ἄρα ταῦτα συγγράμματα ἐστιν, οὓς οἱ ἄνθρωποι νόμους καλοῦσι, βασιλέων τε καὶ ἀνδρῶν

S: Very well. To whom then do the writings and conventions concerning the administration of the city belong? Don't they belong to those with knowledge of taking charge of cities?

Co: I think so.

S: And who else besides the political people and the kingly people know this?

Co: These are the people.

317b

S: So, these writings are political writings which people refer to as laws. They are the writings of kings and of good men.

ἀγαθῶν συγγράμματα. ET. ἀληθῇ λέγεις. ΣΩ. ἄλλο τι οὖν οἷ γε ἐπιστάμενοι οὐκ ἄλλοτε ἄλλα συγγράψουσι περὶ τῶν αὐτῶν; ET. οὐ. ΣΩ. οὐδὲ μεταθήσονται ποτε περὶ τῶν αὐτῶν ἕτερα καὶ ἕτερα νόμιμα; ET. οὐ δῆτα. ΣΩ. ἐὰν οὖν ὀρῶμέν τινας ὅπου οὖν τοῦτο ποιοῦντας, πότερα φήσομεν ἐπιστήμονας εἶναι ἢ ἀνεπιστήμονας τοὺς τοῦτο ποιοῦντας; ET. ἀνεπιστήμονας. ΣΩ. οὐκοῦν καὶ ὁ μὲν ἂν ὀρθὸν ἦ, νόμιμον αὐτὸ φήσομεν ἐκάστῳ εἶναι, ἢ τὸ ἱατρικὸν ἢ τὸ μαγειρικὸν ἢ τὸ κηπουρικόν;

Co: True.

S: Now, those who are knowledgeable do not write different things at different times about the same matters, do they?

Co: No.

S: Nor will they ever change their conventions from one to another on the same matters.

Co: Indeed not.

S: So, if we see any people anywhere doing this, should we declare that those who are doing so are knowledgeable or not knowledgeable?

Co: Not knowledgeable.

S: And wouldn't we say that whatever is correct is the convention on each subject, be it medicine, cookery or gardening?

317c

Co: Yes.

ET. ναί. ΣΩ. ὃ δ' ἂν μὴ ὀρθὸν ᾗ, οὐκέτι φήσομεν τοῦτο νόμιμον εἶναι; ET. οὐκέτι. ΣΩ. ἄνομον ἄρα γίγνεται. ET. ἀνάγκη. ΣΩ. οὐκοῦν καὶ ἐν τοῖς συγγράμμασι τοῖς περὶ τῶν δικαίων καὶ ἀδίκων καὶ ὅλως περὶ πόλεως διακοσμήσεώς τε καὶ περὶ τοῦ ὡς χρὴ πόλιν διοικεῖν, τὸ μὲν ὀρθὸν νόμος ἐστὶ βασιλικός, τὸ δὲ μὴ ὀρθὸν οὐ, ὃ δοκεῖ νόμος εἶναι τοῖς μὴ εἰδόσιν· ἔστιν γὰρ ἄνομον. ET. ναί.

S: And we shall never declare that what is not correct is the conventional thinking?

CO: Never.

S: So, it happens to be unlawful.

CO: Necessarily.

S: Isn't it also the case in the writings dealing with what's just and what's unjust, and the general administration of the city, and how the city should be managed, that what is correct is the kingly law, and what's not correct is not this, even though it seems so to those who do not know. In fact, it is unlawful.

CO: Yes.

317d

S: So, we were right when we agreed that law is the discovery of what is.

ΣΩ. ὀρθῶς ἄρα ὡμολογήσαμεν νόμον εἶναι τοῦ ὄντος εὗρεσιν. ET. φαίνεται. ΣΩ. ἔτι δὲ καὶ τόδε ἐν αὐτῷ διαθεώμεθα. τίς ἐπιστήμων διανεῖμαι ἐπὶ γῇ τὰ σπέρματα; ET. γεωργός. ΣΩ. οὗτος δὲ τὰ ἄξια σπέρματα ἐκάστη γῇ διανέμει; ET. ναί. ΣΩ. ὁ γεωργός ἄρα νομεὺς ἀγαθὸς τούτων, καὶ οἱ τούτου νόμοι καὶ διανομαὶ ἐπὶ ταῦτα ὀρθαί εἰσιν; ET. ναί. ΣΩ. τίς δὲ κρουμάτων ἐπὶ τὰ μέλη ἀγαθὸς νομεὺς, καὶ τὰ ἄξια νεῖμαι; καὶ οἱ τίνος νόμοι ὀρθοί εἰσιν; ET. οἱ τοῦ

CO: Apparently.

S: Let's also examine the following point about this matter. Who is it who knowledgeably distributes seeds on the land?

CO: A farmer?

S: Does he distribute the seeds that are appropriate for each type of land?

CO: Yes.

S: So, the farmer is good at distributing these, and his laws and distributions for these purposes are correct?

CO: Yes.

S: And who is good at distributing notes to melodies and distributes them appropriately, and to whom do the correct laws here belong?

317e

CO: They belong to the flautist and the citharist.

αὐλητοῦ καὶ τοῦ κιθαριστοῦ. ΣΩ. ὁ νομικώτατος ἄρα ἐν τούτοις, οὗτος αὐλητικώτατος. ΕΤ. ναί. ΣΩ. τίς δὲ τὴν τροφήν ἐπὶ τὰ τῶν ἀνθρώπων σώματα διανεῖμαι ἄριστος; οὐχ ὅσπερ τὴν ἀξίαν; ΕΤ. ναί. ΣΩ. αἱ τούτου ἄρα διανομαὶ καὶ οἱ νόμοι βέλτιστοι, καὶ ὅστις περὶ ταῦτα νομικώτατος, καὶ νομεὺς ἄριστος. ΕΤ. πάνυ γε. ΣΩ. τίς οὗτος;

S: So, in these distributions the person who is most skilled in the laws is the most skilled flautist.

CO: Yes.

S: And who is best at distributing nutriment to people's bodies? Isn't it the person who distributes the appropriate nutriment?

CO: Yes.

318a

S: So, his distributions and his laws are best, and whoever is most skilled in the laws concerning these matters is best at making the distribution.

ΕΤ. παιδοτρίβης. ΣΩ. οὗτος τὴν ἀνθρωπείαν ἀγέλην τοῦ σώματος νέμειν κράτιστος; ΕΤ. ναί. ΣΩ. τίς δὲ τὴν τῶν προβάτων ἀγέλην κράτιστος νέμειν; τί ὄνομα αὐτῷ; ΕΤ. ποιμήν. ΣΩ. οἱ τοῦ ποιμένου ἄρα

νόμοι ἄριστοι τοῖς προβάτοις. ET. ναί. ΣΩ. οἱ δὲ τοῦ βουκόλου τοῖς βουσί. ET. ναί. ΣΩ. οἱ δὲ τοῦ τίνος νόμοι ἄριστοι ταῖς ψυχαῖς τῶν ἀνθρώπων; οὐχ οἱ τοῦ βασιλέως; φάθι. ET. φημὶ δῆ.

Co: Indeed so.

S: Who is this person?

Co: A trainer.

S: And he is the one who is best at pasturing the human herd of the body?

Co: Yes.

S: And who is best at pasturing a herd of sheep? What is his name?

Co: A shepherd.

S: So, the laws of the shepherd are best for the sheep.

Co: Yes.

S: And the laws of the cowherd are best for the cows.

Co: Yes.

318b

S: And whose laws are best for the souls of humans? Aren't they the laws of the king? Do you agree?

ΣΩ. καλῶς τοίνυν λέγεις. ἔχοις ἂν οὖν εἰπεῖν τίς τῶν παλαιῶν ἀγαθὸς γέγονεν ἐν τοῖς αὐλητικοῖς νόμοις νομοθέτης; ἴσως οὐκ ἐννοεῖς, ἀλλ' ἐγὼ βούλει σε ὑπομνήσω; ET. πάνυ μὲν οὖν. ΣΩ. ἅρ' οὖν ὁ Μαρσύας λέγεται καὶ τὰ παιδικὰ αὐτοῦ Ὀλυμπος ὁ Φρύξ; ET. ἀληθῆ λέγεις. ΣΩ. τούτων δὴ καὶ τὰ αὐλήματα θεϊότατά ἐστι, καὶ μόνα κινεῖ καὶ ἐκφαίνει τοὺς τῶν θεῶν ἐν χρειᾷ ὄντας· καὶ ἔτι καὶ

Co: I agree.

S: You are answering well. Now, can you say who among the ancients proved to be a good lawgiver in the laws of flute-playing? Perhaps you don't recall; would you like me to remind you?

Co: Very much so.

S: Was it not said to be Marsyas and his beloved, Olympus of Phrygia?²

Co: That's true.

318c

S: And their compositions for the flute are indeed most divine, being the only ones that stir and reveal the people who are in need of the gods. And still, to this day, they remain the only compositions that do this, because they are divine.

νῦν μόνα λοιπά, ὡς θεῖα ὄντα; ET. ἔστι ταῦτα. ΣΩ. τίς δὲ λέγεται τῶν παλαιῶν βασιλέων ἀγαθὸς νομοθέτης γεγονέναι, οὗ ἔτι καὶ νῦν τὰ νόμιμα μένει ὡς θεῖα ὄντα; ET. οὐκ ἐννοῶ. ΣΩ. οὐκ οἶσθα τίνες παλαιοτάτοις νόμοις χρῶνται τῶν Ἑλλήνων; ET. ἄρα Λακεδαιμονίους λέγεις καὶ Λυκοῦργον τὸν νομοθέτην; ΣΩ. ἀλλὰ ταῦτά γε οὐδέπω ἴσως ἔτη τριακόσια ἢ ὀλίγῳ τούτων πλείω. ἀλλὰ τούτων τῶν νομίμων τὰ βέλτιστα πόθεν

Co: This is so.

S: And among the ancient kings, who is said to have been a good lawgiver whose conventions still remain to this day because they are divine?

Co: I can't think of anyone.

318d

S: Don't you know which Greek peoples make use of the most ancient laws?

ἦκει; οἶσθα; ET. φασί γε ἐκ Κρήτης. ΣΩ. οὐκοῦν οὗτοι παλαιοτάτοις νόμοις χρῶνται τῶν Ἑλλήνων; ET. ναί. ΣΩ. οἶσθα οὖν τίνες τούτων ἀγαθοὶ βασιλῆς ἦσαν; Μίνως καὶ Ῥαδάμανθυς, οἱ Διὸς καὶ Εὐρώπης παῖδες, ὧν οἶδε εἰσὶν οἱ νόμοι. ET. Ῥαδάμανθὺν γέ φασιν, ὃ Σώκρατες, δίκαιον ἄνδρα, τὸν δὲ Μίνων ἄγριόν τινα καὶ χαλεπὸν καὶ ἄδικον. ΣΩ. Ἀττικόν, ὃ βέλτιστε, λέγεις μῦθον καὶ τραγικόν.

Co: Are you referring to the Spartans and Lycurgus, their lawgiver?

S: But these are, perhaps, not yet three hundred years old, or a little older. Do you know, rather, where the best of the conventions come from?

Co: From Crete they say.

S: So, among the Greeks, these people make use of the most ancient laws?

Co: Yes.

S: Now, among these people, do you know who the good kings were? They were the offspring of Zeus and Europa, Minos and Rhadamanthus, whose laws these were.

318e

Co: They say, Socrates, that Rhadamanthus, at any rate, was a just man, but that Minos was wild, harsh and unjust.

ET. τί δέ; οὐ ταῦτα λέγεται περὶ Μίνω; ΣΩ. οὐκ οὖν ὑπὸ γε Ὀμήρου καὶ Ἡσιόδου· καίτοι γε πιθανώτεροί εἰσιν ἢ σύμπαντες οἱ τραγωδοποιοί, ὧν σὺ ἀκούων ταῦτα λέγεις. ET. ἀλλὰ τί μὴν οὗτοι περὶ Μίνω λέγουσιν; ΣΩ. ἐγὼ δὴ σοι ἔρῳ, ἵνα μὴ καὶ σὺ ὥσπερ οἱ πολλοὶ ἀσεβῆς. οὐ γὰρ ἔσθ' ὅτι τούτου ἀσεβέστερόν ἐστιν οὐδ' ὅτι χρή μᾶλλον εὐλαβεῖσθαι, πλὴν εἰς θεοὺς καὶ λόγῳ καὶ ἔργῳ ἐξαμαρτάνειν, δεύτερον δὲ εἰς τοὺς θείους ἀνθρώπους· ἀλλὰ πάνυ πολλὴν χρή προμήθειαν ποιεῖσθαι αἰεὶ, ὅταν μέλλῃς

S: Best of men, you are reporting a story from Attic tragedy.

Co: What? Isn't this what is said about Minos?

S: Not by Homer and Hesiod at any rate. Yet these two are more credible than all those tragedians put together, from whom you have heard what you are now saying.

319a

Co: Well, what do they say about Minos?

ἄνδρα ψέξειν ἢ ἐπαινέσεσθαι, μὴ οὐκ ὀρθῶς εἴπῃς. τούτου καὶ ἔνεκα χρή μανθάνειν διαγιγνώσκειν χρηστοὺς καὶ πονηροὺς ἄνδρας. νεμεσᾷ

γὰρ ὁ θεός, ὅταν τις ψέγῃ τὸν ἑαυτῷ ὅμοιον ἢ ἐπαινῇ τὸν ἑαυτῷ ἐναντίως ἔχοντα ἔστι δ' οὗτος ὁ ἀγαθός. μὴ γάρ τι οἷου λίθους μὲν εἶναι ἱεροὺς καὶ ξύλα καὶ ὄρνεα καὶ ὄφεις, ἀνθρώπους δὲ μὴ ἀλλὰ πάντων τούτων ἱερώτατόν ἐστιν ἄνθρωπος ὁ ἀγαθός, καὶ μιαιώτατον ὁ πονηρός. ἤδη οὖν καὶ περὶ Μίνω, ὡς αὐτὸν Ὅμηρος τε καὶ Ἡσίοδος

S: I'll tell you then, so that you don't commit an impiety as most people do. For there is nothing more impious and nothing we should be more careful to avoid than error in word and deed in relation to the gods, or secondly, in relation to divine humans. You must, rather, employ great foresight whenever you are about to criticise or praise anyone, in case you speak incorrectly. That is why we should learn to distinguish between good and evil people. For the god gets angry whenever anyone criticises someone who is like himself, or when anyone praises someone of the opposite sort, the former being a good person. Indeed, you should not think that there are sacred stones, pieces of wood, birds and serpents, but no sacred humans. A good human being is, rather, more sacred than all these, while an evil one is more wretched.

319b

S: And that is why I shall now speak about Minos, as Homer and Hesiod praised him, lest you, a human being of human birth, fall into error in speaking of a hero and a son of Zeus. For Homer, telling us that Crete had a large population and ninety cities, says that "Among them is Cnossus, a great city where Minos was king in the ninth season holding converse with mighty Zeus."³ So this is Homer's praise of Minos, briefly stated, but unlike anything Homer wrote about any of the heroes. That Zeus is a sophist, and that this skill is entirely noble he makes clear in various places, and especially here. For he means to say that Minos converses with Zeus every ninth year, visiting him regularly for educational purposes, as if Zeus were a sophist. So, the fact that the privilege of being educated by Zeus is assigned to none of the heroes apart from Minos is wondrous praise indeed. And in the *Odyssey*, in the 'Book of the Dead', he describes Minos, but not Rhadamanthus, passing judgement, holding a golden sceptre.⁴ But here

he does not describe Rhadamanthus passing judgement, nor anywhere meeting with Zeus. That's why I maintain that Minos has been praised by Homer more than all the others. For being a child of Zeus, and the only one educated by Zeus, is unsurpassed praise. Indeed, this is the meaning of the verse that says "in the ninth season holding converse with mighty Zeus".

ἐγκωμιάζουσι, τούτου ἔνεκα φράσω, ἵνα μὴ ἄνθρωπος ὢν ἀνθρώπου εἰς ἥρῳ Διὸς ὑὸν λόγῳ ἐξαμαρτάνῃς. Ὅμηρος γὰρ περὶ Κρήτης λέγων ὅτι πολλοὶ ἄνθρωποι ἐν αὐτῇ εἰσιν καὶ ἐνενήκοντα πόλεις, τῇσι δέ, φησὶν—ἐνὶ Κνωσὸς μεγάλη πόλις, ἔνθα τε Μίνωσ' ἐννέωρος βασίλευε Διὸς μεγάλου ὀαριστῆς. ἔστιν οὖν τοῦτο Ὅμηρου ἐγκώμιον εἰς Μίνων διὰ βραχέων εἰρημένον, οἶον οὐδ' εἰς ἓνα τῶν ἡρώων ἐποίησεν Ὅμηρος. ὅτι μὲν γὰρ ὁ Ζεὺς σοφιστὴς ἐστὶν καὶ ἡ τέχνη αὕτη παγκάλῃ ἐστί, πολλαχοῦ καὶ ἄλλοθι δηλοῖ, ἀτὰρ καὶ ἐνταῦθα. λέγει γὰρ τὸν Μίνων συγγίγνεσθαι ἐνάτῳ ἔτει τῷ Διὶ ἐν λόγοις καὶ φοιτᾶν παιδευθησόμενον ὡς ὑπὸ σοφιστοῦ ὄντος τοῦ Διός. ὅτι οὖν τοῦτο τὸ γέρας οὐκ ἔστιν ὅτῳ ἀπένειμεν Ὅμηρος τῶν ἡρώων, ὑπὸ Διὸς πεπαιδεῦσθαι, ἄλλῳ ἢ Μίνῳ, τοῦτ' ἔστιν ἔπαινος θαυμαστός. καὶ Ὀδυσσεΐας ἐν Νεκυίᾳ δικάζοντα χρυσοῦν σκῆπτρον ἔχοντα πεποίηκε τὸν Μίνων, οὐ τὸν Ῥαδάμανθυν· Ῥαδάμανθυν δὲ οὐτ' ἐνταῦθα δικάζοντα πεποίηκεν οὔτε συγγιγνόμενον τῷ Διὶ οὐδαμοῦ. διὰ ταυτὰ φημι' ἐγὼ Μίνων ἀπάντων μάλιστα ὑπὸ Ὅμηρου ἐγκεκωμιάσθαι. τὸ γὰρ Διὸς ὄντα παῖδα μόνον ὑπὸ Διὸς πεπαιδεῦσθαι οὐκ ἔχει ὑπερβολὴν ἐπαινου—τοῦτο γὰρ σημαίνει τὸ ἔπος τὸ—ἐννέωρος βασίλευε Διὸς μεγάλου ὀαριστῆς,

319e

S: Minos is a companion of Zeus, since conversations are discourses and a conversation partner is a companion in discourse. So Minos visited the Cave of Zeus every nine years in order to learn and in order to demonstrate what he had learned from Zeus over the previous nine-year period. There are those who understand 'holding converse' as being a drinking companion or playmate of Zeus, but you may use the following as evidence that those who understand the words in this

way are talking nonsense. For of all the peoples there are, Greeks and non-Greeks, there are none who refrain from drinking parties and the playfulness born of wine except the Cretans, and the Spartans too, who learned this from the Cretans. In Crete, among the various laws that Minos instituted, there is one whereby they are not to drink together to the point of drunkenness. And it is evident that whatever he thought noble, he instituted as conventions for his fellow citizens. For Minos did not, of course, behave like some ordinary fellow and think one thing while enacting something else contrary to what he thought. No, his meeting was, as I say, through discourse for the purposes of education in excellence. That's why, for his fellow citizens, he instituted these laws through which Crete is happy for all time, and Sparta too, once it began to make use of them, since they are divine.

συνουσιαστὴν τοῦ Διὸς εἶναι τὸν Μίνων. οἱ γὰρ ὅαροι λόγοι εἰσὶν, καὶ ὁαριστῆς συνουσιαστικῆς ἐστὶν ἐν λόγοις—ἐφοῖτα οὖν δι' ἐνάτου ἔτους εἰς τὸ τοῦ Διὸς ἄντρον ὁ Μίνως, τὰ μὲν μαθησόμενος, τὰ δὲ ἀποδιδέχόμενος ἃ τῇ προτέρᾳ ἐννεετηρίδι ἐμεμαθήκει παρὰ τοῦ Διός. ΣΩ. εἰσὶν δὲ οἱ ὑπολαμβάνουσι τὸν ὁαριστὴν συμπότην καὶ συμπαιστήν εἶναι τοῦ Διός, ἀλλὰ τῷδε ἄν τις τεκμηρίῳ χρῶτο ὅτι οὐδὲν λέγουσιν οἱ οὕτως ὑπολαμβάνοντες· πολλῶν γὰρ ὄντων ἀνθρώπων καὶ Ἑλλήνων καὶ βαρβάρων, οὐκ ἔστιν οἵτινες ἀπέχονται συμποσίων καὶ ταύτης τῆς παιδείας, οὗ ἔστιν οἶνος, ἄλλοι ἢ Κρήτες καὶ Λακεδαιμόνιοι δεῦτεροι, μαθόντες παρὰ Κρητῶν. ἐν Κρήτῃ δὲ εἷς οὗτός ἐστι τῶν ἄλλων νόμων οὗς Μίνως ἔθηκε, μὴ συμπίνειν ἀλλήλοις εἰς μέθην. καίτοι δῆλον ὅτι ἃ ἐνόμιζεν καλὰ εἶναι, ταῦτα νόμιμα ἔθηκεν καὶ τοῖς αὐτοῦ πολίταις. οὐ γάρ που, ὥσπερ γε φαῦλος ἄνθρωπος, ὁ Μίνως ἐνόμιζεν μὲν ἕτερα, ἐποίει δὲ ἄλλα παρ' ἃ ἐνόμιζεν· ἀλλὰ ἦν αὕτη ἡ συνουσία ὥσπερ ἐγὼ λέγω, διὰ λόγων ἐπὶ παιδείᾳ εἰς ἀρετὴν. ὅθεν δὴ καὶ τοὺς νόμους τούτους ἔθηκε τοῖς αὐτοῦ πολίταις, δι' οὓς ἢ τε Κρήτῃ τὸν πάντα χρόνον εὐδαιμονεῖ καὶ Λακεδαιμόνων, ἀφ' οὗ ἥρξατο τούτοις χρῆσθαι, ἅτε θεοῖς οὖσιν. Ῥαδάμανθος δὲ ἀγαθὸς μὲν ἦν ἀνὴρ· ἐπεπαιδεύτο γὰρ

S: But Rhadamanthus was a good man, for he had been educated by Minos. He had not, however, been educated in the entire skill of kingship, but in a skill subservient to kingship sufficient to preside in courts of law, and that's why he was said to be a good judge. Indeed, Minos used him as a guardian of the law in the city, and used Talos for the same purpose in the rest of Crete. For Talos went around the villages three times a year as guardian of the law, having the laws inscribed on brass tablets, hence he was called 'brazen'. And Hesiod too says something similar to this about Minos. For having mentioned his name, he says: "Who proved to be the most kingly of mortal kings, lord over most of the neighbouring peoples, holding the sceptre of Zeus by which he also exercised kingship over the cities."⁵ And by 'the sceptre of Zeus' he simply means the education he received from Zeus, by which he governed Crete.

ὑπὸ τοῦ Μίνω. ἐπεπαίδευτο μέντοι οὐχ ὅλην τὴν βασιλικὴν τέχνην, ἀλλ' ὑπηρεσίαν τῇ βασιλικῇ, ὅσον ἐπιστατεῖν ἐν τοῖς δικαστηρίοις· ὅθεν καὶ δικαστὴς ἀγαθὸς ἐλέχθη εἶναι. νομοφύλακι γὰρ αὐτῷ ἐχρῆτο ὁ Μίνως κατὰ τὸ ἄστυ, τὰ δὲ κατὰ τὴν ἄλλην Κρήτην τῷ Τάλῳ. ὁ γὰρ Τάλως τρις περιήει τοῦ ἐνιαυτοῦ κατὰ τὰς κώμας, φυλάττων τοὺς νόμους ἐν αὐταῖς, ἐν χαλκοῖς γραμματείοις ἔχων γεγραμμένους τοὺς νόμους, ὅθεν χαλκοῦς ἐκλήθη. εἶρηκε δὲ καὶ Ἡσίοδος ἀδελφὰ τούτων εἰς τὸν Μίνων. μνησθεὶς γὰρ αὐτοῦ τοῦ ὀνόματος φησὶν—ὃς βασιλεύτατος γένετο θνητῶν βασιλέων, καὶ πλείστων ἤνασσε περικτιόνων ἀνθρώπων, Ζηνὸς ἔχων σκῆπτρον· τῷ καὶ πολέων βασιλεύεν. καὶ οὗτος λέγει τὸ τοῦ Διὸς σκῆπτρον οὐδὲν ἄλλο ἢ τὴν παιδείαν τὴν τοῦ Διός, ἣ εὐθύνε τὴν Κρήτην. ΕΤ. διὰ τί οὖν ποτε, ὦ Σώκρατες, αὕτη ἡ φήμη κατεσκεδάσται

320e

Co: In that case, Socrates, how on earth has the report been spread abroad that he was an uneducated, harsh person?

τοῦ Μίνω ὡς ἀπαιδευτοῦ τινὸς καὶ χαλεποῦ ὄντος; ΣΩ. δι' ὃ καὶ σύ, ὦ βέλτιστε, ἐὰν σωφρονῆς, εὐλαβήσῃ, καὶ ἄλλος πᾶς ἀνὴρ ὅτῳ μέλει τοῦ

εὐδόκιμον εἶναι, μηδέποτε ἀπεχθάνεσθαι ἀνδρὶ ποιητικῷ μηδενί. οἱ γὰρ ποιηταὶ μέγα δύνανται εἰς δόξαν, ἐφ' ὅποτερά ἂν ποιῶσιν εἰς τοὺς ἀνθρώπους, ἢ εὐλογοῦντες ἢ κακηγοροῦντες. ὁ δὲ καὶ ἐξήμαρτεν ὁ Μίνως, πολεμήσας τῇδε τῇ πόλει, ἐν ἣ ἄλλη τε πολλὴ σοφία ἐστὶ καὶ ποιηταὶ παντοδαποὶ τῆς τε ἄλλης ποιήσεως καὶ τραγωδίας. ἡ δὲ τραγωδία ἐστὶν παλαιὸν ἐνθάδε, οὐχ ὥς οἴονται ἀπὸ Θέσπιδος ἀρξαμένη οὐδ' ἀπὸ Φρυνίχου, ἀλλ' εἰ θέλεις ἐννοῆσαι, πάνυ παλαιὸν αὐτὸ εὐρήσεις ὃν τῆσδε τῆς πόλεως εὕρημα. ἔστιν δὲ τῆς ποιήσεως δημοτερέστατόν τε καὶ ψυχαγωγικώτατον ἡ τραγωδία· ἐν ἣ δὲ καὶ ἐντείνοντες ἡμεῖς τὸν Μίνων τιμωρούμεθα ἀνθ' ὧν ἡμᾶς ἠνάγκασε τοὺς δασμοὺς τελεῖν ἐκείνους. τοῦτο οὖν ἐξήμαρτεν ὁ Μίνως, ἀπεχθόμενος ἡμῖν, ὅθεν δὴ, ὃ σὺ ἐρωτᾷς, κακοδοξότερος

S: Because of something, best of men, that you, if you are sound-minded, will be careful about, as will anyone who is going to preserve his reputation. Never cross any of the poetical folk, for the poets have enormous influence on reputations depending on whether they eulogise or demonise their subjects. And this was the mistake Minos made in waging war on this city of ours in which there is, in general, much wisdom and a great variety of poets of every sort, and tragedians too. For tragedy is of ancient date here, beginning not as people think with Thespis, nor with Phrynichus.⁶ Rather, if you care to think about it, you will find that this is a most ancient discovery made in this very city. And tragedy is the most popular and appealing form of poetry in which we attack Minos in revenge for those tributes he compelled us to pay.⁷ So, this was the mistake Minos made, being angry with us. Hence, to answer your question, he has come to have an increasingly bad reputation. He was good and lawful and, as we said previously, good at distributing, and the strongest indication of this is the fact that his laws are unchanging, since they belong to someone who, in relation to the management of the city, well discovered the truth of what is.

321b

Co: The argument you have presented sounds probable to me, Socrates.

γέγονεν. ἐπεὶ ὅτι γε ἀγαθὸς ἦν καὶ νόμιμος, ὅπερ καὶ ἐν τοῖς πρόσθεν ἐλέγομεν, νομεὺς ἀγαθός, τοῦτο μέγιστον σημεῖον, ὅτι ἀκίνητοι αὐτοῦ οἱ νόμοι εἰσὶν, ἅτε τοῦ ὄντος περὶ πόλεως οἰκίσεως ἐξευρόντος εὖ τὴν ἀλήθειαν. ΕΤ. δοκεῖς μοι, ὦ Σώκρατες, εἰκότα τὸν λόγον εἰρηκέναι. ΣΩ. οὐκοῦν εἰ ἐγὼ ἀληθῆ λέγω, δοκοῦσί σοι παλαιοτάτοις Κρήτες οἱ Μίνω καὶ Ῥαδαμάνθυος πολῖται νόμοις χρῆσθαι; ΕΤ. φαίνονται. ΣΩ. οὗτοι ἄρα τῶν παλαιῶν ἄριστοι νομοθέται γεγόνασιν,

S: In that case, if I am speaking the truth, do you think that the Cretan citizens of Minos and Rhadamanthus made use of the most ancient laws?

Co: Apparently.

S: So, these two proved to be the best lawgivers of the ancients, shepherding and distributing to the people, just as Homer said that a good general is a shepherd of the multitude.⁸

Co: Very much so.

321c

S: Come on then, in the name of Zeus, god of friendship, what if someone were to ask us, “What is it that the good lawgiver, who is good at distributing to the body, distributes to the body to make it better?” We would reply, rightly and briefly, that it is nutriment and exertion to develop the body itself on the one hand, and to exercise and establish it on the other.

νομῆς τε καὶ ποιμένες ἀνδρῶν, ὥσπερ καὶ Ὅμηρος ἔφη ποιμένα λαῶν εἶναι τὸν ἀγαθὸν στρατηγόν. ΕΤ. πάνυ μὲν οὖν. ΣΩ. φέρε δὴ πρὸς Διὸς φιλίου· εἴ τις ἡμᾶς ἔροιτο, ὁ τῷ σώματι ἀγαθὸς νομοθέτης τε καὶ νομεὺς τί ἐστὶν ταῦτα ἃ διανέμων ἐπὶ τὸ σῶμα βέλτιον αὐτὸ ποιεῖ, εἵπομεν ἂν καλῶς τε καὶ διὰ βραχέων ἀποκρινόμενοι, ὅτι τροφήν τε καὶ πόνους, τῇ μὲν αὖξων, τοῖς δὲ γυμνάζων καὶ συνιστὰς τὸ σῶμα αὐτό. ΕΤ. ὁρθῶς γε.

Co: Correct.

S: What if he were then to ask us, “What precisely is it that the good lawgiver, who is good at distributing, distributes to the soul to make it better?” How might we respond if we were to avoid shame to ourselves at our age?

321d

Co: At this stage, I can no longer say.

ΣΩ. εἰ οὖν δὴ μετὰ τοῦτο ἔροιτο ἡμᾶς, τί δὲ δὴ ποτε ἐκεῖνά ἐστιν, ἃ ὁ ἀγαθὸς νομοθέτης τε καὶ νομεὺς διανέμων ἐπὶ τὴν ψυχὴν βελτίω αὐτὴν ποιεῖ; τί ἂν ἀποκρινάμενοι οὐκ ἂν αἰσχυνηθεῖμεν καὶ ὑπὲρ ἡμῶν αὐτῶν καὶ τῆς ἡλικίας αὐτῶν; ΕΤ. οὐκέτι τοῦτ' ἔχω εἰπεῖν. ΣΩ. ἀλλὰ μέντοι αἰσχρὸν γε τῇ ψυχῇ ἡμῶν ἐστιν ἑκατέρου, τὰ μὲν ἐν αὐταῖς φαίνεσθαι μὴ εἰδυίας, ἐν οἷς αὐταῖς ἔνεστι καὶ τὸ ἀγαθὸν καὶ τὸ φλαῦρον, τὰ δὲ τοῦ σώματος καὶ τὰ τῶν ἄλλων ἐσκέφθαι.

S: Well, it is a shame then, on the soul of each of us, that it is so plainly ignorant of that within it which is good or bad for it, even though it has considered what's good and bad for the body and much else.

Notes

¹ Most scholars doubt that Plato was the author of this work.

² Marsyas was a legendary musician who was credited with having developed the skill of playing wind instruments by picking up and playing an aulos (a kind of double oboe, which is translated here as 'flute') that was left behind by Athena. Olympus was credited with having introduced instrumental music to Greece from Phrygia in the East.

³ *Odyssey* xix.178-179.

⁴ The 'Book of the Dead' refers to the *Odyssey*, Book xi. For the account of Minos passing judgement with his golden sceptre see *Odyssey*, xi.568-571.

⁵ Hesiod, Fragment 144.

⁶ Thespis is variously credited with having been the first actor in a play, having introduced the principal actor and the chorus, and having been the inventor of tragedy. Phrynichus was a student of Thespis and one of the first tragedians.

⁷ According to legend, after defeating the Athenians, Minos demanded that a tribute of seven young men and seven young women be sent by Athens to Crete every nine years as food for the Minotaur.

⁸ *Iliad* i.263, *Odyssey* iv.532.